

Notifications under - The Industries (Development And Regulation) Act, 1951

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Notifications under - The Industries (Development And Regulation) Act, 1951

Rule NOTIFICATIONS-UNDER-THE-INDUSTRIES-DEVELOPMENT-AND-REGULATION-ACT-1951 of 1951

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Notifications under - The Industries (Development And Regulation) Act, 1951

Published vide Notification Gazette of India, Extraordinary, Part 2, Section 3(ii), dated 7th December, 1984./ Published vide Notification Gazette of India, Extraordinary, Part 2, Section 3(ii), dated 18th March, 1985.

2003.

Notifications

1.

S.O. 903(E), dated 7th December, 1984. - In exercise of the powers conferred by sub-section (1) of Sec. 29B of the Industries (Development and Regulation) Act, 1951 (65 of 1951), the Central Government hereby makes the following further amendment in the Notification of the Government of India in the late Ministry of Industrial Development(

Department of Industrial Development) No. S.O. 98(E)/IDRA/29-B/73/1, dated the 16th February, 1973, namely :
In Sch. V. after Sl. No. 71 and the entry relating thereto, the following shall be inserted, namely:

"72. LPG Valves and Regulators.

73.

Railway points and crossing."

2.

In pursuance of sub-section (2) of Sec. 29B of the said Act, the Central Government hereby specifies a period of six months from the date of publication of this notification in the Official Gazette as the period after the expiry of which no owner of any industrial undertaking which was exempted from the operation of Secs. 10, 11, 11-A and 13 of the said Act and which is not exempt by virtue of this notification shall carry on the business of such undertaking except under and in accordance with a licence issued in this behalf by the Central Government and in the case of the State Government except under and in accordance with the previous permission of the Central Government.

S.O. 200(E), dated 18th March, 1985. - In exercise of the powers conferred by sub-section (1) of Sec. 29B of the Industries (Development and Regulation) Act, 1951 the Central Government hereby makes the following further amendments in the Notification of the Government of India in the late Ministry of Industrial Development (Department of Industrial Development) No. S.O.98(E)/IDRA/29-B/73/1, dated 16th February, 1973, namely:

(I)

In Sch. V to the said notification, the following S. Nos. and entries relating thereto shall be omitted namely:

"13. Steel structurals;"

"15. TV Receivers;"

"49. Electronic components;"

"52. Digital Electronic watches";

"53. Chemicals and Pharmaceuticals machinery including mixers and reactor-Kneading Mills, turbo mixers and the like
Filtration equipment-filter press rotary filters and the like. Centrifugal machines, Evaporators, Distillation equipment
Crystallisers, Driers."

"59. Distribution transformers;" and

"65. Industrial Gases."

(II)

In Sch. V to the said notification, for the following S. Nos. and the entries relating thereto the following S. Nos. and entries shall be substituted, namely:

"20. Sewing machines -Head operated (except industrial sewing machines)" and

"47. Pig-iron."

G.S.O. 201(E), dated 18th March, 1985. - In exercise of the powers conferred by sub-section (1) of Sec. 29B of the Industries (Development and Regulation) Act, 1951 (65 of 1951) and in supersession of the notification of the Government of India in the Ministry of Industry and Civil Supplies (Department of Industrial Development) No. S.O. 637/(E) IDRA/29-B/75, dated the 1st November, 1975, except as respects things done or omitted to have been done before such supersession, the Central Government hereby exempts from the operation of Secs. 10,11-A and 13 of the said Act and the rules made thereunder, all industrial undertakings to any of the industries specified in the Schedule appended to this Notification, subject to the following conditions, namely :

1. The articles of manufacture shall not be an article specified in Schedule I (reserved for small scale industries) to the Notification No. 98 (E)/ IDRA/29-B/73-1, dated the 16th February, 1973, of the Department of Industrial Development;

2. The industrial undertaking does not fall within the purview of the Monopolies and Restrictive Trade Practices Act, 1969 (54 of 1969) or within the purview of the Foreign Exchange Regulation Act, 1973 (

46 of 1973

);

3.

The industrial undertaking is not located or proposed to be located;

(i)

within the Standard Urban Area Limit as determined in the Census of India 1981, of a city having a population of more than 10 lakhs; or

(ii)

within the Municipal limits of a city with a population of more than 5 lakhs; as determined in the said Census.

2. This is in addition to and not in derogation of Notification No. S.O. 98(E)/ IDRA/ 29-B/ 1, dated the 16th February, 1973, of the Ministry of Industry, Department of Industrial Development.

The Schedule

1. Special alloy, SG and Malleable iron castings, sponge iron and pelletisation;

2. Steel structurals

3. Electrical equipment, namely,

(a)

Equipment for exploitation of alternate source of energy like solar, wind power, bio-mass including bio-gas, geothermal, energy, tidal power and sea power;

(b)

Steam turbines of and below 20 MW and mini and micro hydel systems, equipment.

(c)

Power and distribution transformers, power capacitors, switch gears, electrical motors, and GLS Lamps.

(d)

Diesel Generating Sets.

4.

Electronic components.

5.

Automotive ancillaries.

6.

Cycles.

7.

Industrial machinery including rubber machinery /printing machinery, footwear machinery, meat and poultry machinery.

8.

Machine tools.

9.

Agricultural implements.

10.

Miscellaneous mechanical and engineering industries, namely,-

(a)

Plastic moulded goods;

(b)

Hand tools, small tools and cutting tools;

(c)

Pressure cooker, cutlery and steel furniture;

(d)

Lanterns of all types;

(e)

Fuel efficient stoves;

(i) Water pumps beyond 10 cros.

11.

Industrial Sewing Machines.

12.

Office equipment as listed below:

(1)

Multiplication and reproduction equipment;

(2)

Word processors;

(3)

Cash registers/ invoicing machines;

(4)

Dictaphone.

(5)

Microfilming/ micro fichereaders.

13.

Surgical, industrial and scientific instruments.

14.

Industrial and Medical Gases.

15.

Following Drugs/Drug intermediates;

Rifampicin.

Dapsone.

Clofazimine

Primaquin

BMME (Ethoxy Methylene Malonic Ester)

Nevaldiamine

Insulin

Anti-Cancer Drugs

Vitamin B6

Norgestral

Piperazine

New Bulk Drugs developed through indigenous research;

16.

Paper and pulp namely :

(a)

Writing, printing and wrapping papers from agricultural residue, waste and bagasse.

(b)

Cotton seed linter pulp.

17.

Canned fruit and vegetable products, protein and processed foods, vegetable based weaning food, marine products and cattle feed.

18.

Vegetable Oils, namely:

(a)

Solvent extraction of oil/oilcakes from minor seeds excluding cottonseeds.

(b)

Rice bran oil.

19.

Soap and cosmetics, namely :

(a)

Soap, cosmetics, perfumery and toilet preparations.

(b)

Detergents of ISI Standards.

20.

Leather goods.

21.

Surgical and medicinal rubber products.

22.

Glassware.

23.

Ceramics, namely

(a)
Refractories and furnace lining bricks.

(b)
China ware, pottery and sanitary ware.

(c)
H.T. Insulators.

(d)
Tiles.

(e)
Graphite Ceramics.

24.
Insulating boards, gypsum boards, wall boards and the like.

25.
Printing including Litho Printing.

S.O. 202 (E), dated 18th March, 1985. - In exercise of the powers conferred by sub-section (1) of Sec. 29B read with Section 11B of the Industries (Development and Regulation) Act, 1951 (65 of 1951), the Central Government hereby makes the following amendments to this Ministry's Notification No. S.O. 98(E)/IDRA/29B/ 73/1, dated the 16th February, 1973, namely :

In the said notification,

(i)
for the heading "Small Scale Units" the heading "Small Scale Industrial Undertakings" shall be substituted and under heading so substituted in item No. 1, for the expression "Rs. 20 lakhs" the expression "Rs. 35 lakhs" shall be substituted;

(ii)
for the heading "Ancillaries" the heading "Ancillary Industrial Undertakings" shall be substituted and under the heading so substituted in Item No. 2, for the expression "Rs. 25 lakhs", the expression, "Rs. 45 lakhs" shall be substituted.

2. This notification shall come into force on the date of its publication in the Official Gazette.

S.O. 461(E), dated 5th August, 1986. - In exercise of the powers conferred by sub-section (1) of Sec. 29B of the Industries (Development and Regulation) Act, 1951 (65 of 1951), and in supersession of the Notification of the Government of India in the Ministry of Industry (Department of Industrial Development) No. S.O. 815(E), dated the 26th September, 1980, the Central Government hereby exempts every industrial undertaking (hereinafter referred to as the said undertaking), engaged or proposed to be engaged, in the spinning of all or any of the following kinds of yarn, namely, worsted or non-worsted yarn, either wholly or partly, from wool and having a total capacity up to-

(i)
4,800 (four thousand and eight hundred) worsted spindles in areas other than backward and 5,600 (five thousand and six hundred) worsted spindles for backward areas.

(ii)
3,200 (three thousand and two hundred) non-worsted spindles for backward areas, from the operation of Secs. 10, 11, 11A and 13 of the said Act and the relevant rules made thereunder, subject to the following conditions, namely:

(1)
The article of manufacture shall not be an article specified in Sch.1 to the notification of the Government of India in the erstwhile Ministry of Industrial Development No. S.O. 98 (E), dated the 16th February, 1973 as amended from time to time (hereinafter referred to as the said notification);

(2)
The said undertaking does not fall within the purview of the Monopolies and Restrictive Trade Practices Act, 1969 (54 of 1969), or within the purview of the Foreign Exchange Regulation Act, 1973 (46 of 1973

);

(3)
The said undertaking is not located or proposed to be located

(a)

within the standard urban area limit of a city, having a population of more than one million as ascertained at the 1981 census; or

(b)

within the municipal limits of a city, having a population of more than five lakhs, as ascertained at the 1981 census; and

(4)

The said undertaking shall register itself with the Textile Commissioner and shall furnish a return in Form 'G' appended to the Registration and Licensing of Industrial Undertakings Rules, 1952, in respect of progress made by the said undertaking and shall also submit production returns every month to the Textile Commissioner in such form as may be notified under the provisions of the said rules or by the Textile Commissioner from time to time in accordance with the said rules;

(5)

The said undertaking shall be subjected to the conditions specified in the said notification except the conditions specified in Condition No. 3 (a), (b) and (c) therein;

(6)

The special regulations required in the case of industries mentioned in Sch. IV to the said notification shall not be applicable in the case of said undertaking to the extent of their having a total capacity mentioned in Cl. (i) and (ii) of this notification.

S.O. 24(E), dated 17th January, 1991. - In exercise of the powers conferred by sub-section (1) of Sec. 29B of the Industries (Development and Regulation) Act, 1951 (65 of 1951), the Central Government hereby exempts all existing industrial undertakings from the operation of Cl. (d) of sub-section (1) of Sec. 13 of the said Act and the rules made thereunder subject to the following conditions, namely :

(1)

The article of manufacture shall not be an article reserved for exclusive production in the small scale sector. The articles reserved for small scale sector are specified in Schedule III to the Notification of the Government of India in the Ministry of Industry (Department of Industrial Development) No. S.O. 628(E), dated the 30th June, 1988.

(2)

The articles of manufacture shall not be articles included in the Schedule annexed to this notification.

(3)

The capacity to be endorsed on the licence /registration certificate shall be limited to the highest production achieved during any of the financial years between the 1st April, 1988 and the 31st March, 1990.

(4)

The industrial undertaking shall not install additional machinery indigenous or imported, except balancing equipments not exceeding 10 per cent of the existing book value of investment in plant, machinery and equipment related to that particular article of manufacture.

(5)

The export obligation in respect of the article concerned, if any, imposed in the industrial licence/registration certificate/approvals for foreign collaboration and capital goods shall apply equally to the enhanced production achieved and endorsed on the industrial licence/ registration certificate approvals held by the industrial undertakings.

Schedule

[See Cl. (2), the article of manufacture]

1.

Coal.

2. Textiles, Units operated by power:

(a)

All weaving units employing more than 50 workers.

(b)

All spinning units with investment in fixed assets of more than Rs. 15 crores.

3. Milk foods and malted foods.

4. Vegetable oils and vanaspati, excluding solvent extracted oils from minor oils seeds other than cotton seeds, rice bran oil and oil cakes.

5. Leather.

6. Matches.
7. Distillation and brewing of alcoholic drinks.
8. Hot rolling of semis, bars, wire rods and structural sections of steel.
9. Tractors and self-propelled combine harvestors.
10. Motor cars, buses, trucks, jeeps, vans, scooters, motor cycles, mopeds and all other types of automobiles.
11. Slitting/confectioning of photosensitized material from jumbo rolls.
12. Asbestos and asbestos based products.
13. Plywood, decorative veneers, particle board. medium density fibre board, black board and the like.
14. Sugar.
15. All types of steel manufactured through induction and electric arc furnaces.
16. Iron and steel pipes and tubes, and stainless steel tubes.
17. Cold rolled/hot rolled and coated coils/sheets/strips including box strappings and plates of all categories of steel.
18. Non-ferrous semis, alloys, flat products and extrusions excluding those of aluminium.
19. Cold rolled formed sections.
20. Ferro alloys.
21. (a) Telecommunication equipment.
- (b)
Subscriber (end user) communication terminal equipment.
- (c)
Wireless equipment ; all types.
22. Computer peripherals excluding key boards and monitors.
23. Micro-processor based industrial control instrumentation system.
24. Electronics aerospace and defence equipment ; all types.
25. Industrial explosives, including detonating fuse, safety fuel, gum powder and nitrocellulose.
26.
Chemicals (other than fertilisers).
- (i)
Sodium/potassium chlorate.
- (ii)
Calcium carbonate.
- (iii)
Calcium carbide.
- (iv)
Elemental Phosphorous.
- (v)
BHC Technical.
- (vi)
m-amino phenol.
- (vii)
m-dinitro benzene.
- (viii)
Nitro benzenes.
- (ix)
Nitro chloro benzenes.
- (x)
Nitro toluenes
- (xi)
Alcohol based chemicals, namely acetaldehyde, acetic acid, acetic anhydride ethyl acetate and diethyl ether.
- (xii)
Formaldehyde.
- (xiii)

Nylon chips /nylon moulding powder.

(xiv)

Polyster chips /polyester moulding powder.

(xv)

Industrial alcohol.

(xvi)

Sodium/ Potassium cyanide.

(xvii)

Pesticides/ Insecticides formulations based on technical material obtained from source other than own manufacture.

(xviii)

Carbaryl.

(xix)

Quinalphos.

(xx)

Dimethoate.

(xxi)

Aluminium Phosphide.

(xxii)

Insporturon.

(xxiii)

Phorate.

(xxiv)

Monocrotophes.

(xxv)

Carbondazine.

(xxvi)

Fenitrophion.

(xxvii)

6-APA.

S.O. 391(E), dated 17th June, 1993. - Whereas the manufacture of readymade garments has been reserved for exclusive production by any ancillary or the small scale industrial undertakings;

And whereas the Central Government is of the opinion that it is desirable to allow higher investments in the industrial undertakings manufacturing readymade garments with a view to securing technological upgrading and increasing exports;

Now, therefore, in exercise of the powers conferred by sub-section (1) of Sec. 29B of the Industries (Development and Regulation) Act, 1951 (65 of 1951), the Central Government hereby exempts an industrial undertaking engaged in manufacture of readymade garments, having product code 264104, from the operation of the provisions of sub-sections (2A) to (2G), both inclusive, of Section 29B of the said Act subject to the following conditions, namely:

(i)

that the investment in fixed assets in plant and machinery in the industrial undertaking, whether held on ownership terms or on lease or by hire purchase shall not exceed rupees three hundred lakhs;

(ii)

that such industrial undertaking shall undertake to export a minimum of fifty per cent of the new or additional annual production to be achieved within a maximum period of three years; and

(iii)

not less than fifty per cent of the export obligation undertaken in (ii) above shall be achieved by way of non-quota exports.

Explanation. - For the purpose of this notification "product code" means the product code specified in Sch. III of the Notification of the Government of India in the Ministry of Industry (Department of Industrial Development) No. S.O. 477(E), dated the 25th July, 1991.

Note. - For the purposes of this notification,

(a)

in calculating the value of plant and machinery, the original price thereof, irrespective of whether the plant and machinery are new or second hand, shall be taken into account but the following shall be excluded, namely :

(i)

the cost of equipments such as tools, jigs, dies, moulds and spare parts for maintenance and the cost of consumable stores;

(ii)

the cost of installation of plant and machinery;

(iii)

the cost of research and development equipment and pollution control equipment;

(iv)

the cost of generation sets, extra transformer, installed by the undertaking as per the regulations of the State Electricity Board;

(v)

the bank charges and service charges paid to the National Small Industries Corporation or the State Small Industries Corporation;

(vi)

the cost involved in procurement or installation of cables, wiring, bus bars, electrical control panels (not those mounted on individual machines), oil circuit breakers /miniature circuit breakers, etc. which are necessarily to be used for providing electrical power to the plant and machinery/ safety measures;

(vii)

the cost of gas producer plant;

(viii)

transportation charges (excluding of taxes, e.g. Sales Tax, Excise, etc.) for indigenous machinery from the place of manufacturing to the site of the factory;

(ix)

charges paid for technical know-how for election of plant and machinery;

(x)

cost of such storage tanks which store raw materials finished products only and are not linked with the manufacturing process; and

(xi)

cost of fire fighting equipments;

(b)

in the case of imported machinery, the following shall be included in calculating the value, namely

(i)

import duty (excluding miscellaneous expenses as transportation for the port to the site of the factory, demurrage paid at the port);

(ii)

the shipping charges;

(iii)

customs clearance charges; and

(iv)

Sales tax.

2. This notification shall come into force from the date of its publication in the Official Gazette.

S.O. 857(E), dated 10th December, 1997. - Whereas the Central Government considers it necessary with a view to ascertain which ancillary and small scale industrial undertakings need supportive measures, exemption or other favourable treatment under the Industries (Development and Regulation) Act, 1951 (65 of 1951) (hereinafter referred to as the said Act) to enable them to maintain their viability and strength so as to be effective in-

(a)

promoting in a harmonious manner the industrial economy of the country and easing the problem of unemployment, and

(b)

securing that the ownership and control of the material resources of the community are so distributed as best to subserve the common good;

And whereas the draft notification was laid before each House of Parliament for a period of thirty days as required under sub-section (3) of Sec. 11B of the said Act;

And whereas no modification in the proposed notification has been suggested by both the Houses of Parliament;

Now, therefore, in exercise of the powers conferred by sub-section (1) of Sec. 11B and sub-section (1) of Sec. 29B of the said Act, and in supersession of the Notification of the Government of India in the Ministry of Industry (Department of Industrial Development) number S.O. 232(E), dated the 2nd April, 1991, the Central Government hereby specifies the following factors on the basis of which an industrial undertaking shall be regarded as a small scale or as an ancillary industrial undertaking for the purposes of the said Act :

(1)

Small scale industrial undertaking. An industrial undertaking in which the investment in fixed assets in plant and machinery, whether held on ownership terms or on lease or on hire purchase, does not exceed rupees three crores;

(2)

Ancillary industrial undertaking.-An industrial undertaking which is engaged or is proposed to be engaged in the manufacturing or production of parts, components, sub-assemblies, tooling or intermediates, or the rendering of services, and undertaking supplies or proposes to supply or renders not more than fifty per cent of its production or services, as the case maybe, to one or more other industrial undertakings and whose investment in fixed assets in plant and machinery, whether held on ownership terms or on lease or on hire purchase, does not exceed rupees three crores.

Note 1. - No small scale or ancillary industrial undertaking referred to above shall be subsidiary of , or owned or controlled by any other industrial undertaking.

Explanation. - For the purposes of this note,

(A)

"owned" shall have the meaning as derived from the definition of the expression "owner" specified in Cl. (f) of Sec. 3 of the said Act;

(B)

"subsidiary" shall have the same meaning as in Cl. (47) of Sec. 2, read with Sec. 4 of the Companies Act, 1956 (1 of 1956

);

(C)

the expression "controlled by any other industrial undertaking" means as under :

(i)

where two or more industrial undertakings are set up by the same person as a proprietor, each of such industrial undertakings shall be considered to be controlled by the other industrial undertaking or undertakings.

(ii)

where two or more industrial undertakings are set up as partnership firms under the Indian Partnership Act, 1932 (1 of 1932) and one or more partners are common partner or partners in such firms, each such undertaking shall be considered to be controlled by the other undertaking or undertakings.

(iii)

where industrial undertakings are set up by companies under the Companies Act, 1956 (1 of 1956

), an industrial undertaking shall be considered to be controlled by other industrial undertaking if,

(a)

the equity holding by other industrial undertaking in it exceeds twenty-four per cent of its total equity; or

(b)

the management control of an undertaking is passed on to the other industrial undertaking by way of the Managing Director of the first mentioned undertaking being also the Managing Director or Director in the other industrial undertaking or the majority of Directors on the Board of the first mentioned undertaking being the equity holders in the other industrial undertaking in terms of the provisions of the following items (a) and (b) of sub-clause (iv);

(iv)

the extent of equity participation by other industrial undertaking or undertakings in the undertaking as per sub-clause (iii)

above shall be worked out as follows:

(a)

the equity participation by other industrial undertaking shall include both foreign and domestic equity;

(b)

equity participation by other industrial undertaking shall mean total equity held in an industrial undertaking by other industrial undertaking or undertakings, whether small scale or otherwise, put together as well as the equity held by persons who are Directors in any other industrial undertaking or undertakings even if the person concerned is a Director in other Industrial Undertaking or Undertakings;

(c)

equity held by a person, having special technical qualification and experience, appointed as a Director in a small scale industrial undertaking, to the extent of qualification shares, if so provided in the Articles of Association, shall not be counted in computing the equity held by other industrial undertaking or undertakings even if the person concerned is a Director in other industrial undertaking or undertakings;

(v)

where an industrial undertaking is a subsidiary of, or is owned or controlled by, any other industrial undertaking or undertakings in terms of sub-clauses (i), (ii) or (iii) and if the total investment in fixed assets in plant and machinery of the first mentioned industrial undertaking and the other industrial undertaking or undertakings clubbed together exceeds the limit of investment specified in paragraphs (1) or (2) of this notification as the case maybe, none of these industrial undertakings shall be considered to be a small scale or ancillary industrial undertaking.

Note 2. - (a) In calculating the value of plant and machinery for the purposes of paragraphs (1) and (2) of this notification, the original price thereof, irrespective of whether the plant and machinery are new or second hand, shall be taken into account.

(b)

In calculating the value of plant and machinery, the following shall be excluded, namely :

(i)

the cost of equipments such as tools, jigs, dies, moulds and spare parts for maintenance and the cost of consumable stores;

(ii)

the cost of installation of plant and machinery;

(iii)

the cost of research and development equipment and pollution control equipment;

(iv)

the cost of generation sets and extra transformer installed by the undertaking as per the regulations of the State Electricity Board;

(v)

the bank charges and service charges paid to, the National Small Industries Corporation or the State Small Industries Corporation;

(vi)

the cost involved in procurement or installation of cables, wiring, bus bars, electrical control panels (not those mounted on individual machines), oil circuit breakers or miniature circuit breakers which are necessarily to be used for providing electrical power to the plant and machinery or for safety measures;

(vii)

the cost of gas products plants;

(viii)

transportation charges (excluding of sales tax and excise) for indigenous machinery from the place of manufacturing to the site of the factory;

(ix)

charges paid for technical know-how for erection of plant and machinery;

(x)

cost of such storage tanks which store raw materials, finished products only and are not linked with the manufacturing process; and

(x)

cost of fire fighting equipments.

(c)

In the case of imported machinery, the following shall be included in calculating the value, namely:

(i)

import duty (excluding miscellaneous expenses as transportation from the port to the site of the factory, demurrage paid at the port);

(ii)

the shipping charges;

(iii)

customs clearance charges; and

(iv)

sales tax.

Every industrial undertaking which has been issued a certificate of registration under Sec. 10 of the said Act or a licence under Secs. 11, 11-A and 13 of the said Act by the Central Government and are covered by the provisions of paragraphs (1) and (2) above relating to the ancillary or small scale industrial undertaking, may be registered at the discretion of the owner, as such, within a period of one hundred and eighty days from the date of publication of this notification in the Official Gazette.

This notification shall come into force from the date of its publication in the Official Gazette.

S.O. 881(E), dated 18th December, 1997. - Whereas the Central Government in the interest of stepping up of exports, have been permitting expansion, or creation of new capacities, by industrial undertakings other than the small scale industrial undertakings in respect of items reserved for exclusive manufacture in small scale sector if they undertake an export obligation of a minimum of 75 per cent of the additional or new capacities to be achieved within a maximum period of three years;

And whereas the Central Government is of opinion, having regard to the stage of development of the scheduled industries, that it would not be in public interest to apply the provisions of sub-sections (2A) to (2H) (both inclusive) of Sec. 29B of the Industries (Development and Regulation) Act, 1951 (65 of 1951);

Now, therefore, in exercise of the powers conferred by sub-section (1) of Sec. 29B of the Industries (Development and Regulation) Act, 1951 (65 of 1951) hereby exempts all industrial undertakings other than the small scale industrial undertakings engaged in the manufacture of items reserved for exclusive manufacture in the small scale sector, from the operation of the provisions of sub-sections (2A) to (2G) (both inclusive) of Sec. 29B of the said Act subject to the condition that every such industrial undertakings shall undertake to export minimum of 50 per cent of the new or additional annual production to be achieved within a maximum period of three years.

This notification shall come into force on and from the date of its publication in the Official Gazette.

S.O. 90(E), dated 29th January, 1998. - In exercise of the powers conferred by sub-section (1) of Sec. 29B of the Industries (Development and Regulation) Act, 1951(65 of 1951), the Central Government hereby makes the following amendments in the Notification of the Government of India in the Ministry of Industry (Department of Industrial Development) number S.O.477(E), dated the 25th July, 1991, namely:

In Sch. I of the said notification, for Item 7 and the entries relating thereto, the following item and entries shall be substituted namely:

"7. The substances specified in the Schedule to the notification of the Government of India in the Department of Atomic Energy number S.O. 212(E), dated the 15th March, 1995, namely:

1. Uranium, its compounds and mineral/ores/concentrates containing uranium including tailings containing uranium.
2. Thorium, its compounds and minerals /concentrates containing thorium including monazite.
3. Zirconium, its alloys and compounds and minerals/ concentrates including zircon.
4. Beryllium, its compounds and its minerals/concentrates including Beryl but excluding Beryllium windows used for medical X-rays machines and gamma/ ray machines.
5. Lithium, its compounds and its minerals /concentrates including lepidolite.
6. Deuterium and its compounds.
7. Plutonium, and its compounds.
8. Neptunium and its compounds.

9. Columbite and Tantalite.

10. Titanium ores and concentrates (ilmenite, rutile, louchexene).

11. Nuclear grade graphite.

12. Tritium and its compounds."

S.O. 196(E), dated 11th March, 1998. - In exercise of the powers conferred by sub-section (1) of Sec. 29B of the Industries (Development and Regulation) Act, 1951 (65 of 1951), the Central Government hereby makes the following further amendments in the Notification of the Government of India in the Ministry of Industry (Department of Industrial Development) Number S.O.477(E), dated the 25th July, 1991, namely: In the said notification, in Sch. II, Items 5, 7, 8, 9, 10 and 12 and the entries thereunder shall be omitted.

S.O. 577(E), dated 9th July, 1998. - In exercise of the powers conferred by sub-section (1) of Sec. 29B of the Industries (Development and Regulation) Act, 1951(65 of 1951), the Central Government hereby makes the following further amendments in the Notification of the Government of India in the Ministry of Industry (Department of Industrial Development) Number S.O. 477(E), dated the 25th July, 1991, namely-

(1)

In Sch. I of the said notification, Items 3 and 4 shall be omitted.

(2)

In Sch. II of the said notification, Items 1 and 2 and the entries thereunder shall be omitted.

S.O. 808 (E), dated 11th September, 1998. - In exercise of the powers conferred by sub-section (1) of Sec. 29B of the Industries (Development and Regulation) Act, 1951 (65 of 1951), the Central Government hereby makes the following further amendment in the Notification of the Government of India in the Ministry of Industry (Department of Industrial Development) Number S.O. 477(E), dated the 25th July, 1991, namely:-

In Sch. II to the said notification, Item 4, relating to sugar and the entries thereunder shall be omitted.

Related AI tags, queries and research notes

Translation